

COVER NOTE TO AIRCOUNSEL

GatewayGuard LLC — License Agreement Review Request

From: William F. Burns III, GatewayGuard LLC, Brunswick, Maine

Contact: admin@gatewayguard.co

Date: July 24, 2026

What We Need

Please review the attached GatewayGuard Source-Available License Agreement (Option B) and provide comments on the following specific questions, in addition to any general observations:

1. **Warranty language (Section 6).** We have chosen to warrant five specific things — that the tool runs on supported Windows 11 versions, does what the website says, makes no unauthorized changes, contains no malware, and collects no data. Most software ships with no warranty at all. Is this warranty scope appropriate and defensible for a solo Maine LLC? Does it create unacceptable liability exposure, or does it strengthen our position with customers?
2. **Competition protection for the Guide (Section 3, Guide License).** The Guide (a separate PDF product) is licensed for personal use on all home PCs the buyer owns, but explicitly prohibits commercial use. Can someone legally rewrite the Guide in their own words and use it to start a competing business? What language, if any, would give us meaningful protection against that? Is copyright alone sufficient, or do we need additional terms?
3. **Hardware fingerprint binding (Section 2).** The Tool license is bound to a single PC by hardware fingerprint. The license states that the tool records the PC it is first run on and will only run on that PC. Is this clause enforceable as written? Are there consumer protection concerns under Maine law with hardware-bound software?
4. **Source-available model (Section 2 and Section 4).** The Tool ships as readable PowerShell source code. The license explicitly grants the right to read and inspect the code but prohibits redistribution, modification, and derivative works. Is this structure — read-only grant plus no-redistribution restriction — enforceable under copyright law? Does the fact that the source is technically readable affect our ability to enforce the no-redistribution clause?
5. **Liability cap (Section 7).** We have capped total liability at the amount paid for the license. Is this cap enforceable in Maine against a consumer? Are there any Maine consumer protection statutes that would override this cap?
6. **Refund policy placeholder (Section 8).** We have not yet decided our refund window or conditions. Please advise on what Maine law requires, if anything, for a digital software product sold to consumers, and whether Gumroad (our sales platform) imposes any additional refund obligations we must reflect in the license.
7. **Governing law (Section 10).** We have specified Maine as governing law. The business is a Maine LLC operated in Maine. Is there any reason to consider an alternative jurisdiction, or is Maine correct and sufficient?
8. **Process question.** Does your flat-fee review include a round of follow-up questions after we receive your comments, or is follow-up billed separately? Please advise so we can plan accordingly.

Background

GatewayGuard is a Windows 11 security hardening tool for non-technical home users and seniors, sold as a one-time purchase (\$19.99 single PC) with optional annual updates (\$12.99/year). The tool is a PowerShell script that walks users through security hardening steps with their approval at each step. Nothing is changed automatically without the user's explicit consent. The business is a Maine LLC (EIN 42-3920627). Launch target: September 1, 2026.

There are two separate products covered by this license: (1) the Tool (PowerShell script) and (2) the Guide (PDF). They have different license terms and are purchased separately, though a bundle is also available.

GATEWAYGUARD SOURCE-AVAILABLE LICENSE AGREEMENT

Version 1.0 — Draft for Attorney Review

Dated: July 24, 2026

Attorney review required before use. This draft is not legal advice.

This agreement is between you ("you" or "Customer") and GatewayGuard LLC, a Maine limited liability company ("GatewayGuard," "we," or "us"). By downloading, installing, or running any GatewayGuard product, you agree to these terms. If you do not agree, do not use the product.

1. Products Covered

This agreement covers two separate GatewayGuard products, each with its own license terms:

The Tool: GatewayGuard Windows 11 Security Hardening Tool (a PowerShell script). Covered in Sections 2–4.

The Guide: GatewayGuard Windows Security Walkthrough Guide (a PDF document). Covered in Section 5.

Purchasing one product does not grant a license to the other, except where a bundle purchase is made.

2. Tool License — What You Are Buying

You are buying a license to use the Tool — not the Tool itself. GatewayGuard LLC owns the Tool, including all code, text, and design. Your license lets you install and run the Tool on one (1) personal computer that you own or control.

PC Binding. The Tool records a hardware identifier from the first PC it is run on. After that first run, the Tool will only operate on that same PC. This binding is tied to your PC's hardware, not your name or account. If you need to move your license to a new PC (for example, because your old PC failed or you replaced it), contact us at support@gatewayguard.co and we will reissue your license. We handle reissuance on a reasonable, case-by-case basis.

Multi-PC Packs. If you purchased a 3-PC, 5-PC, or 10-PC pack, your license covers that number of PCs. Each PC in the pack is bound separately as described above.

You may read the source code. The Tool is delivered as a PowerShell script (.ps1 file). The source code is fully readable in any text editor. We want you to be able to see exactly what the Tool does — that is part of how you know you can trust it. You may open, read, and inspect the source code freely.

Updates. This license covers the version you purchased. Your licensed version continues to work indefinitely — we will never make your existing copy stop working. Updated versions for new Windows 11 releases are available separately for \$12.99 per update, or as part of an annual update subscription if offered at the time of purchase. Update terms and current pricing are described at gatewayguard.co.

3. Tool License — What You May Do

With a valid Tool license you may:

9. Install and run the Tool on your licensed PC as many times as you like.
10. Open and read the source code in any text editor.
11. Make one backup copy of the download file for your own safekeeping.
12. Quote short portions of the source code when writing a review or asking for technical help online, provided you include the attribution "GatewayGuard LLC — gatewayguard.co."

4. Tool License — What You May Not Do

You may not:

13. Share, sell, rent, lend, give, or transfer the Tool or any copy of it to anyone else, except as described in Section 2 (PC migration via support).
14. Post the Tool or its source code on any website, file-sharing service, code repository, or forum.
15. Create modified versions of the Tool or incorporate our code into another product, whether for personal or commercial use.
16. Remove, alter, or obscure our name, copyright notices, or the code-signing signature from the Tool.
17. Use the Tool on business, school, government, or organizational computers without a separate written agreement with GatewayGuard LLC.
18. Use the Tool to provide services to others for compensation — for example, running it on clients' computers as part of a paid service — without a separate written agreement with GatewayGuard LLC.

5. Guide License

The Guide is a separate product from the Tool. Purchasing the Guide gives you a personal, non-transferable license to:

19. Read and use the Guide on any personal computer in your home that you own or control.
20. Print one copy for your personal use.

You may not:

21. Share, distribute, sell, or give the Guide to anyone outside your household.
22. Post the Guide or any portion of it online.
23. Use the Guide for any commercial purpose, including teaching, consulting, training, or providing services to others.
24. Create derivative works based on the Guide — including rewritten, adapted, translated, or reformatted versions — whether for personal or commercial use.

The Guide is protected by copyright. GatewayGuard LLC retains all rights not expressly granted here.

6. What GatewayGuard Warrants

GatewayGuard LLC warrants that:

25. **The Tool will run on supported Windows 11 versions** as listed at gatewayguard.co/compatible at the time of your purchase.
26. **The Tool does what the website describes.** It reviews and adjusts Windows 11 security settings, with your approval at each step, and every change is reversible.
27. **The Tool makes no unauthorized changes.** The Tool will not change any setting without first showing you what the change is and asking for your approval.
28. **The Tool contains no malware.** The Tool is digitally signed with a code-signing certificate issued by a recognized certificate authority. The signed file has not been altered since signing.
29. **The Tool collects no data.** The Tool makes no network connections from your PC. Nothing about you or your computer is sent to GatewayGuard LLC or any third party.

These warranties do not cover: problems caused by Windows updates that change system behavior after your purchase; incompatibility with hardware configurations not listed on our compatible PC list; or damage caused by running the Tool on unsupported Windows versions.

7. What GatewayGuard Does Not Promise

Except for the warranties in Section 6, GatewayGuard is provided "as is." We do not promise that the Tool will make your computer immune to all security threats, catch all malware, or prevent all attacks. No security tool can

make that guarantee. We do not promise that the Tool will work correctly on every possible hardware and software configuration. We do not promise that settings configured by the Tool will remain in place after Windows updates.

8. Refunds

[PLACEHOLDER — refund window and conditions to be determined before launch. AirCounsel: please advise on what Maine law requires for digital software sold to consumers, and whether Gumroad's platform terms impose additional refund obligations we must reflect here.]

9. Liability Limit

To the fullest extent Maine law allows, GatewayGuard LLC is not liable for any indirect, incidental, special, or consequential damages arising from your use of our products, even if we were told such damages were possible. Our total liability to you for any claim related to GatewayGuard products is limited to the amount you actually paid for the product at issue.

10. Governing Law

This agreement is governed by the laws of the State of Maine, without regard to conflict-of-law principles. Any dispute arising from this agreement will be resolved in the courts of Maine.

11. Ending This License

If you break these terms, your license ends immediately and you must delete all copies of the GatewayGuard products in your possession. You may end this license yourself at any time by deleting all copies. Ending the license does not entitle you to a refund except as provided in Section 8.

12. Contact

GatewayGuard LLC | Brunswick, Maine | support@gatewayguard.co | gatewayguard.co

End of Document — Draft for Attorney Review Only — Not for Distribution